

immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Denny Mayeda v. Grant Reynolds et al

21CV001212

DEFENDANT’S MOTION TO DISMISS COMPLAINT

TENTATIVE RULING: The matter is CONTINUED to August 20, 2026, at 8:30 a.m. in Dept. A to allow the moving party to provide sufficient notice of the motion.

June 19 and July 3, 2026 were Court holidays. (See Code Civ. Proc., §§ 10, 135, and Govt. Code, § 6700, subds. (a)(11) and (12).) As a result, June 11, 2026 was the last day for service, by mail, of a notice and papers filed in support of a motion set for hearing on July 10, 2026. (See Code Civ. Proc., §§ 12c, subds. (a) and (b), 1005, subd. (b).) The evidence of service before the Court indicates mail service on June 12, 2026. As such, the moving party failed to serve the notice and moving papers 16 court days plus five calendar days before the hearing as required. Because the other parties to the action have not waived the defect in service, either expressly, or by filing substantive oppositions or non-oppositions to the motion, the Court is without jurisdiction to hear it. (*Diaz v. Prof. Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204-05 [“The court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question.”].)

The moving party is directed to (1) prepare an Amended Notice which contains the continued hearing date, as well as notice of the Court’s tentative ruling system as required by Local Rule 2.9, (2) provide timely service of the Amended Notice and moving papers to all other parties, and (3) file a proof of service pursuant to Rules of Court, rule 3.1300, subd. (c).

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M5 Automotive LLC v. Kastner Automotive Inc. et al

22CV000567

PLAINTIFF AND CROSS-DEFENDANT M5 AUTOMOTIVE LLC’S MOTION FOR: (1) AN ORDER RULING THAT ENFORCEMENT OF THE FEE AND COST AWARD IS NOT AUTOMATICALLY STAYED BY APPEAL AND THAT AN UNDERTAKING IS REQUIRED; OR, IN THE ALTERNATIVE, (2) AN ORDER REQUIRING A DISCRETIONARY UNDERTAKING

TENTATIVE RULING: The matter is CONTINUED to August 7, 2026, at 8:30 a.m. in Dept. A.

[1] DEFENDANT’S MOTION TO COMPEL ARBITRATION OF PLAINTIFF’S
INDIVIDUAL PAGA CLAIM

TENTATIVE RULING: The motion is GRANTED. Plaintiff is ordered to remit to arbitration her individual PAGA claim asserted through the Complaint in this action. The Clerk shall set the matter for a Status Conference re: Arbitration on January 13, 2027, at 8:30 a.m. in Dept. A. The parties shall, no later than January 6, 2027, file a brief statement informing the Court of the status of arbitration.

A. PROCEDURAL MATTERS

Defendants Solage Management, Inc.’s (“Solage”) and Auberge Resorts LLC’s (“Auberge”) (collectively, “Defendants”) move for an order compelling arbitration of Plaintiff Blaire Trambley’s (“Plaintiff”) individual PAGA claim.

Plaintiff’s Complaint, filed December 22, 2025, is entitled “Complaint for Enforcement Under the Private Attorneys General Act, California Labor Code § 2698, et seq.” and asserts a single cause of action for “Violation of the California Labor Code § 2698 et seq.” on behalf of “Plaintiff [], individually, and on behalf of other aggrieved employees pursuant to the California Private Attorneys General Act.”

On October 17, 2025, Plaintiff filed a separate action, between identical parties, asserting, both individually and on behalf of a class of certain similarly situated employees of Defendants, (1) nine claims for violation of various provisions of the Labor Code, and (2) a claim for Unfair Business Practices in violation of Business & Professions Code section 17200. (See Complaint, filed 10/17/25, in Napa County Superior Court, case no. 25CV002157.) This first-filed matter is hereinafter referred to as the “Class Action.”

On February 19, 2026, in the Class Action, the Court granted Defendants’ motion to compel arbitration of Plaintiff’s individual claims and to dismiss the class claims, based on the exact same¹ Arbitration Agreement and substantially identical evidence as that presented with the present motion. (See Mem., 1:13-16; *cf.* 6/1/26 Declaration of Shelby Vollmers in support of Defendants’ present motion (“Vollmers Decl.”), 6/26/26 Declaration of Andrew Katon (“Katon Decl.”) in opposition to Defendants’ present motion (“Katon Decl.”), 6/26/26 Declaration of Plaintiff in opposition to Defendants’ present motion (“Pltf Decl.”) *with* 1/22/26 Vollmers Decl., 2/4/26 Katon Decl., 2/4/26 Pltf Decl.)

¹ The Arbitration Agreement, attached as Exhibit 2 to the Vollmers Decl. in support of the present motion, contains a Docusign Envelop ID header and a date stamp underneath Solage’s signature on page 7, which does not appear on the version of the Arbitration Agreement, attached as Exhibit 2 to the Vollmers Decl. in support of the motion in the Class Action. (See Vollmers Decl., Exh. 2, p. 7.) These markings are not addressed or raised by either party. The Court assumes the inclusion of the date stamp and Docusign header was an inadvertent technological error, based on the fact that the date stamp shows May 28, 2026, almost two years after the date of Plaintiff’s signing the Arbitration Agreement, and close in time to when Defendants signed and filed the present moving papers. Thus, the Court disregards these markings for purposes of the present Motion.